

Rameshwar Public School v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 February 2023 · WRIT - C No. - 39954 of 2022 · **Writ disposed after theft recovery withdrawn; fresh Supply Code order after hearing.**

HEADNOTE

Where the licensee withdraws a recovery on an alleged-theft demand and undertakes to pass a fresh order after hearing the consumer, the writ is disposed of with liberty to proceed strictly under the Electricity Supply Code, 2005. The Court does not decide the theft allegation or the validity of the demand.

FACTUAL SUMMARY

Rameshwar Public School filed a writ against a demand notice dated 24 September 2022 issued by respondent no. 4 alleging theft of electricity. After listings for service and for the Corporation to place any final assessment and proof of service, the Court directed that no coercive action be taken on the citation. Counsel for the Corporation then stated that the impugned recovery had been withdrawn and that a fresh order would be passed after giving the petitioner a hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

theft demand — recovery withdrawn; fresh order after hearing

HOLDING

On the Corporation's statement that the impugned theft recovery had been withdrawn and that a fresh order would be passed after opportunity of hearing, the writ seeking quashing of the 24.09.2022 demand was disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 5

PRINCIPLE TAGS

recovery-withdrawn-fresh-order-after-hearing-supply-code

The theft recovery having been withdrawn and a fresh hearing-based order undertaken, the Court disposed of the writ with liberty to proceed strictly under the Electricity Supply Code, 2005, without deciding the demand. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN, AND WHETHER THE 24.09.2022 DEMAND OR ANY FINAL ASSESSMENT WAS VALIDLY MADE AND SERVED

Left open; recovery withdrawn and a fresh order may be passed after hearing under the Supply Code, 2005. ¶ 5